

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THAILAND

Complete Community Opposition How-To

This guide uses the Thai terms and bodies you'll actually run into — the EIA, EHIA and IEE, ONEP and the Expert Review Committee, the Administrative Court, community rights under the Constitution, the National Human Rights Commission — and explains each in plain words the first time. Thailand's laws and politics shift, so always check the current position.

INTRODUCTION & FRAMEWORK

Map Ta Phut, in Rayong province, is one of the most polluted places in Thailand — a vast petrochemical and industrial estate whose neighbours have lived for decades with foul air, sickness, and contaminated water. In the late 2000s, as the state moved to license **76 new industrial projects** there, the surrounding communities — organised as the **Eastern People's Network** — did something that changed Thai environmental law. They went to the **Administrative Court**, arguing that the projects had been approved without the environmental and health impact assessments, the public participation, and the independent review that the Constitution required for projects that seriously harm health and the environment. And in **2009 the court agreed**, suspending **65 of the 76 projects** — worth some eight billion dollars — until they complied. Most of the projects, in the end, were allowed to proceed after meeting the new requirements; the communities did not stop the estate. But they forced into being a whole new layer of protection — the **Environmental Health Impact Assessment (EHIA)**, mandatory public participation, and an independent review body — that every serious project in Thailand has had to reckon with since.

The Eastern People's Network of Map Ta Phut drew on a genuine toolkit — one they used to halt an eight-billion-dollar industrial programme and reshape Thai law. An **EIA/EHIA** system carries public participation. A **free and accessible Administrative Court** hears challenges, as it did when it suspended 65 of 76 projects until they complied. **Community rights** are written into the Constitution. And a **National Human Rights Commission** investigates. But these tools have grave limits, and this guide states them plainly. Thailand's politics are unstable — coups and military-backed governments have repeatedly rewritten the rules — the state promotes big industry and infrastructure hard, participation is often run as a formality, and **communities and defenders who resist have faced intimidation, legal harassment, and worse**. A state-backed project can often, in the end, satisfy the new requirements and proceed, so the realistic goal is frequently to **delay, to force a genuine EHIA and real participation, to win binding conditions, and to raise the cost**, rather than an outright, permanent stop. Safety runs through this guide.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Thai project needs its **EIA or EHIA** approved (through **ONEP** and its expert committee); it needs its permits; where it seriously harms health it needs the constitutional process — assessment, participation, independent review; and it can be challenged in the **Administrative Court**. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If a serious-impact project skipped the EHIA, the participation, or the independent review, the Administrative Court genuinely bites** — the Map Ta Phut lever, which halted 65 projects.
- **If the assessment is flawed or participation was a sham, that's a real ground** — and forces a redo.
- **If the state backs the project, an outright permanent stop is hard** — aim honestly at delay, a genuine EHIA, binding conditions, and exposure, and protect your people.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the participation, the EHIA, the Administrative Court, community rights — and **run every front at once**, safely: the documents, the participation, the court, the movement, the press. That's how Map Ta Phut reshaped the law.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental gate is the **EIA** (environmental impact assessment) or, for seriously harmful projects, the **EHIA** (environmental *and health* impact assessment) — reviewed by **ONEP** (the Office of Natural Resources and Environmental Policy and Planning) and its **Expert Review Committee**, with the **National Environment Board (NEB)** and the environment ministry above them; for smaller projects, a lighter **IEE**. The permitting agencies then issue the licences. Local administrations and the provincial governor have roles. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The assessment and public participation. The developer prepares the EIA/EHIA; there's a **public-participation** process — public hearings, scoping — and, for EHIA projects, an independent review. *Your opening* — *and it arms every later step*: take part, put your objections on the record, and insist the participation and (for serious projects) the EHIA and independent review are genuine, not a formality. This was the heart of Map Ta Phut.

The approval and permits. ONEP's committee approves the assessment; the agencies license the project. *Your opening*: an approval built on a defective assessment, a skipped EHIA, or a sham participation can be challenged.

Construction and operation. *Your opening*: breaches of the conditions, and continued harm — enforceable in the Administrative Court.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure. **What it still needs** — the EIA/EHIA not approved or under challenge, the permits not granted, the financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and investors, often international, with their own environmental and human-rights standards.

Who's Supposed to Be Watching

Each is an ally or an arena. **ONEP and its Expert Review Committee** run the assessment and can be pressed. The **Administrative Court** — free and accessible — reviews approvals and can suspend and

annul them, as it did at Map Ta Phut. The **National Human Rights Commission** investigates rights violations, including harassment of defenders. The **Ombudsman** takes maladministration complaints. And Thailand's **community networks, its environmental and academic allies, and its press** are the forces that reach furthest — the combination that carried Map Ta Phut.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether an EHIA/participation/independent-review requirement was skipped, whether the assessment is flawed, and how set the state is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Participation / objections in the assessment	15–35%	during review	low	On record; conditions or a redo
Administrative Court challenge (with suspension)	30–55%	1–3 yr	low (court is free)	Approval suspended or annulled
EHIA / independent-review requirement	30–55%	varies	low	Serious project halted pending a genuine EHIA
National Human Rights Commission complaint	15–40%	months–yr	low	Findings; pressure; protection
Movement + media	25–50%	months–yr	low	Political cost; project reconsidered
Everything together (skipped EHIA/serious harm, public watching)	40–60%	1–3 yr	low–mod	Halted, redone, conditioned, delayed
Everything together (state-backed, clean process)	20–40%	1–3 yr	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are the **Administrative Court** and the **EHIA/independent-review requirement**, backed by the movement and the press. Map Ta Phut shows the ceiling (65 projects halted, the law reshaped) and the honest floor (most projects proceeded after complying). So aim for the full range of wins — a halt, a genuine EHIA, binding conditions, delay — not only an outright stop.

On cost and safety: participating, documenting, and organising are cheap, and the Administrative Court is free and can be used by volunteers with public data. But defenders here face intimidation and legal harassment (including strategic lawsuits) — so document safely, protect the vulnerable, and route risk through lawyers, the Human Rights Commission, and the press.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this approval, this flaw, this skipped requirement — is strong. Answer five questions in writing, safely.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over your health and air, water and rivers, a protected forest or wetland, farmland and fisheries, communities. **A serious health or environmental impact is what triggers the EHIA and the strongest process rights**, so map it carefully — Map Ta Phut turned on health harm.
- 3. What stage is it at, and what's the next deadline?** Is the assessment in participation? Has ONEP's committee approved it (opening the Administrative Court)? These openings are time-bound.
- 4. What does it still need that it lacks?** An EIA/EHIA not approved, permits not granted, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbours, the community network, academic and environmental allies. Map Ta Phut organised a whole eastern network.

What this looks like in real life. A community learns an industrial plant or power project is planned that will foul its air and water, with a thin EIA and a token hearing. The five questions yield: a named company behind it; a site with serious health impact (the EHIA trigger); an assessment in participation with approval pending; a project still needing that approval; and a coalition of neighbours and academic allies. That's the Map Ta Phut pattern — demand a genuine EHIA and participation, and get the Administrative Court ready.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers — safely.

Layer one: the paper trail. Get the documents the decision rests on — the EIA/EHIA, the approval and its conditions, the permits, the participation record. Thailand's access-to-information rights let you demand what isn't public. Then read the assessment hard for flaws — an understated health or environmental impact, an ignored alternative, a skipped EHIA where one was required, a "participation" that never genuinely reached the community (the Map Ta Phut grounds).

Layer two: the ground truth. Dated, located photographs and video of the site, the air and water, the harm to health — baseline evidence before any damage most of all — and, carefully, the testimony of affected residents. A community-run **health impact assessment** (which the National Health Commission Office can support) can be powerful evidence.

Layer three: the map of harms and protections. Lay the project over your community, your water and air, and any protected forest or wetland, so the health and environmental impacts — and the EHIA trigger — are visible. Walking into the Administrative Court with the assessment, the approval, and that map is what makes it act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA/EHIA, the approval and conditions, the permits, the participation record** — from ONEP and the agencies; force out the rest under the access-to-information rules (8A).
- **Local administration records** — from the local administration and the province.
- **Ownership and financing** — company records and lender documents.

- **The harms-and-protections map** — your community, water and air, and protected areas, laid over the project.
- **Dated evidence and consented testimony** — photographs marked with date and place, and a community health assessment where possible.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Map Ta Phut's eastern network reshaped the law. Build your coalition in four moves — and safely.

Start with a tight core. The neighbours most affected, the people who know the harm, a few tireless organisers, and respected local figures.

Build a network. The Thai vehicle is the community network — a named, organised group (or alliance of villages) that speaks with one voice in the participation, the court, and the press. Hold meetings where people see the evidence — the map of the harm to their health and water.

Bring in allies and lawyers — early, and safely. Reach the environmental and human-rights lawyers who run Administrative Court cases, the academics and the National Health Commission Office who can support a health impact assessment, and the national networks. The free Administrative Court means a supported community can bring a strong case.

Build to last, and safely. Thai fights run for years, through political upheaval, and can turn dangerous. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and physical risks. Take intimidation and legal harassment (including SLAPP suits) seriously, protect the vulnerable, and route danger through lawyers, the Human Rights Commission, and the press.

STEP 4: LEGAL CHALLENGES & COMMUNITY RIGHTS

Law is one of Thailand's sharpest levers, because the Administrative Court is free, accessible, and willing to halt projects — as Map Ta Phut proved.

Participate First — It Builds the Record

Everything downstream is stronger if you took part in the assessment and put your objections — especially on health, participation, and the EHIA — on the record. The court reviews the approval on that record, so your objections are the raw material of the challenge.

The Administrative Court — the Map Ta Phut Lever

The core route is a challenge in the **Administrative Court**, which is **free to access** and can **suspend and annul** an approval. The grounds that won at Map Ta Phut are the sharpest: for a project that seriously harms health or the environment, the Constitution requires a genuine **EHIA**, real **public participation**, and an **independent review** — and skipping any of them makes the approval unlawful. A defective EIA, or a sham participation, is a ground for any project. Ask the court to **suspend** the works while the case runs — that's what halted the 65 projects.

Community Rights and the Human Rights Commission

Thailand's Constitution recognises **community rights** — the right of communities to participate in the management and protection of their natural resources and to a healthy environment — which underpin the

participation and EHIA requirements. And the **National Human Rights Commission** can investigate a project's rights violations and the harassment of defenders, producing findings and pressure that support the legal and public campaign.

The Honest Limits

Straight talk: the Administrative Court is a genuine lever and reshaped the law, but a state-backed project can often satisfy the new requirements and proceed; politics and the rules shift with each government; participation is frequently a formality; and defenders face real danger. So use the strong tools — the participation, the EHIA requirement, the Administrative Court, community rights — but pair them with the movement and the press, protect your people, and count a halt, a genuine EHIA, binding conditions, delay, and exposure as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the project is harmful" but *"this seriously harms health, yet there was no genuine EHIA, no real participation, and no independent review — so, as at Map Ta Phut, the approval is unlawful."*

Health becomes the strongest claim. *"The air and water our families depend on will be poisoned — and the health impact was never honestly assessed."*

A right becomes a shield. *"Our community rights under the Constitution include participating in protecting our environment — and we were shut out."*

The harm becomes a public story. *"The air, the water, the health of our children — for a project we were never truly consulted about."*

Match it to the venue: the objections to ONEP; the skipped EHIA and sham participation to the Administrative Court; the rights violation to the Human Rights Commission; the human story to the press.

STEP 5: MEDIA STRATEGY

In Thailand, public attention is a real lever — and, where defenders are at risk, a protection. A free-ish press, academic allies, and community networks make the media front central, though it must be handled with care.

Lead with people and place, not procedure. Not "the EIA was procedurally deficient" but "the air, the water, the health of our children — for a project we were never truly consulted about." Use your strongest material: dated photographs, the map of the harm, a community health assessment, and — carefully — human testimony.

Work several audiences at once. Local and national press build political pressure; academic and environmental networks amplify; international media and human-rights networks reach the financiers and help protect people. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can be used against you, including in a SLAPP suit. And protect people — weigh every public act, and let the community decide what is said and by whom.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Access-to-information request (to ONEP / the agency).

Subject: Request for the EIA/EHIA and approval — [project].

"Under the access-to-information rules, we, residents of [place], request the EIA/EHIA, the approval and its conditions, the permits, and the participation record for [project] at [location]. [Contact.]"

8B — Objection in the assessment / participation.

Subject: Objection — [project] assessment.

"We, residents of [place], object to the approval of [project]: [it seriously harms health but had no genuine EHIA / independent review; the participation never reached us; the assessment ignored this impact]. We ask that approval be refused or a genuine EHIA and participation required. [Attach evidence.]"

8C — To a public-interest lawyer (Administrative Court).

Subject: Administrative Court challenge — [project].

"Our community faces [project], approved [on date] without [a genuine EHIA / real participation / independent review], and threatening our [health / water]. We ask you to advise on a challenge and a request to suspend the works. [Attach the approval, the assessment and our evidence.]"

8D — To the National Human Rights Commission.

Subject: Rights violation — [project] at [location].

"We report that [project] violates our community rights and threatens our health, and that [any harassment of community members]. We ask the Commission to investigate and to help protect those at risk. [Attach evidence.]"

8E — Requesting a health impact assessment (to the National Health Commission Office).

Subject: Request for support with a community health impact assessment — [project].

"Our community faces [project], which threatens our health. We ask for support to conduct a community health impact assessment. [Contact.]"

8F — To a financier.

Subject: Environmental, health, and legal risk in [project].

"We understand your institution may be financing [project] at [location], which [seriously harms health without a genuine EHIA / faces active legal challenge]. We ask you to weigh this against your own environmental and human-rights standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [air / water / health] from [project].

"For generations the people of [place] have depended on [the air / the water] at [location]. Now [project] threatens it — and our health — and we were never truly consulted. We can provide photographs, documents, a map and — carefully — interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can protect our health and water — here's how.

"[Project] threatens [our air / water / health]. At Map Ta Phut, communities went to the Administrative Court and halted 65 industrial projects — and reshaped the law. With a genuine EHIA, participation, the free Administrative Court, and the movement behind us, we have a real chance. Please join us — carefully, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and its footprint, and look for the serious-harm trigger.** A serious health impact triggers the EHIA and your strongest process rights.
2. **Take part in the assessment and object (8B), insisting on a genuine EHIA, participation, and independent review.**
3. **Request the documents (8A), and read the assessment for flaws and skipped requirements.**
4. **Photograph everything, with dates and places, safely; start a community health assessment (8E).**
5. **Get a lawyer for the free Administrative Court (8C), and ask it to suspend the works.**
6. **Build a network, go public, and involve the Human Rights Commission (8D/8H) — safely.** Map Ta Phut halted 65 projects this way.

Even lean, those six use your rights, build the record, hit the strongest legal ground, and protect your people.

WHEN THE SYSTEM IS TILTED

Thailand's tools are real, but the field is often tilted, and you must plan for it.

When the state backs the project. A state-backed project can often satisfy the requirements and proceed. Don't fold: force a genuine EHIA and participation, use the Administrative Court, keep the network alive, and aim for delay, conditions, and exposure as real wins.

When participation is a formality. A token hearing is not participation. Document the sham — it's a ground that can void an approval, as at Map Ta Phut.

When the rules shift with politics. Coups and new governments rewrite the rules. Check the current position, and lean on the durable levers — the Administrative Court, community rights, the health-harm trigger.

When defenders are targeted. Intimidation and SLAPP suits are real. Take them seriously, protect the vulnerable, work through lawyers and the Human Rights Commission, and use the press as a shield.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Thailand has documented problems with the capture of approvals by industrial and political interests, so this matters.

How to spot it. Approvals against the evidence; an EIA that reads as written for the proponent; participation engineered to exclude the affected; revolving doors; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **National Anti-Corruption Commission** investigates graft. The **Auditor-General** examines public money. The **Administrative Court** can annul a tainted approval. The **National Human Rights Commission** takes rights complaints. And Thailand's **press** has exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Don't make public accusations you can't back; they can invite retaliation. Route serious evidence to the proper bodies and trusted journalists, protect insiders and witnesses, and pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the health-harm trigger aims it; organising builds the muscle; the Administrative Court presses the case; the media raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and the serious-harm trigger; take part in the assessment and object; request the records; photograph the baseline and start a health assessment; get a lawyer and build your network — safely.

In the thick of it (months–years): challenge a defective approval in the free Administrative Court and seek a suspension; press the EHIA/participation grounds and community rights; involve the Human Rights Commission; open the media front — carefully.

The long haul (years): carry the case through the courts; keep the network and the attention alive; hold the line for a halt, a genuine EHIA, binding conditions, delay, or an outright stop — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Thailand can be done — communities took a multi-billion-dollar industrial programme to the Administrative Court, halted 65 projects, and reshaped the country's environmental law. Hold both truths. Thailand's tools are real: an EIA/EHIA system with participation; a free, accessible Administrative Court that suspends and annuls approvals; community rights in the Constitution; and a Human Rights Commission that investigates. And the constraints are real: a state that promotes big industry, projects that often proceed after complying, rules that shift with politics, and genuine danger to defenders.

Here's the discipline that wins. Find the serious-harm trigger and the flaw — the skipped EHIA, the sham participation — and pry loose the record. Take part in the assessment and object, insisting on a genuine

EHIA, real participation, and independent review. Challenge a defective approval in the free Administrative Court and ask it to suspend the works. Build a health assessment and a network, involve the Human Rights Commission, carry the story to the public — and protect your people above all. Count a halt, a genuine EHIA, binding conditions, delay, and exposure as wins alongside an outright stop. That's what Map Ta Phut did — the community network, the free court, and the health-harm law together. So can you — safely.